Before awareness.

When an owner would give up a lost object, but does not yet know it is lost—does that future response count now?

יאוש שלא מדעת

בבא מציעא כא ע״ב–כב ע״ב

A FOUR-MINUTE CONVERSATION

01 **Frame the dispute.** Contrast future despair with present awareness. Keep the agreed scope restrictions visible.

02 **Test one premise.** The coins reply attacks the assumed unawareness, leaving the Mishnah intact.

03 **Inspect the bridge.** Separate the final river comparison from Rashi’s timing clarification and the supplied reconstruction.

04 **Invite revision.** Which node or relation would you redraw? Compare it with the source excerpts.

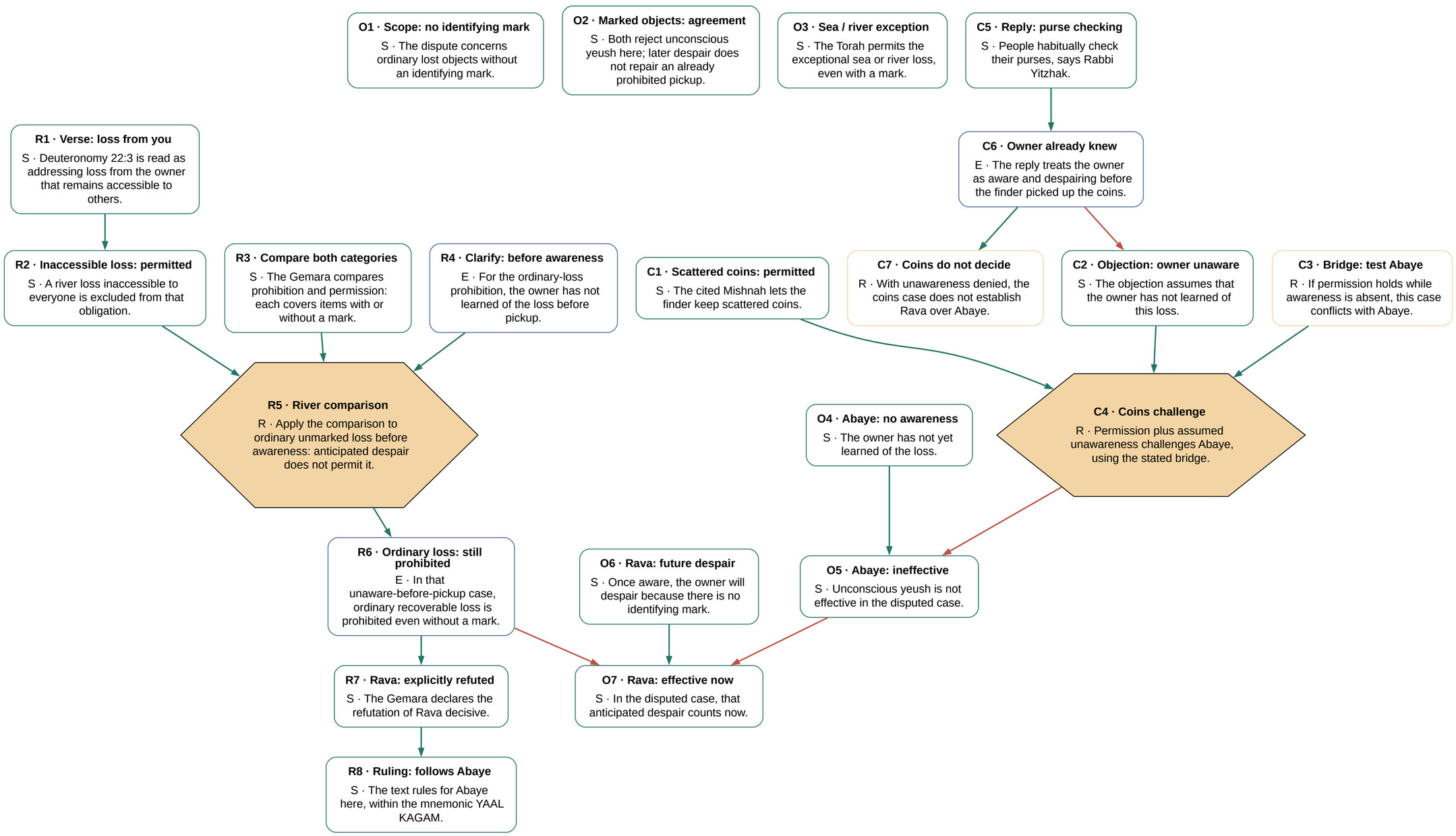
22 nodes · 18 relations · Three selected episodes. This is an argument reconstruction for discussion, not a complete encoding of the sugya, a machine proof, or a system for deciding halakhah.

Reading order: overview → opening → coins → river → provenance → primary text. The overview is an A2 landscape foldout; episode pages use A3 to keep node text readable. Notes use A4. View pages individually or print at actual size; shrinking the foldout onto A4 makes its labels small.

Three episodes with cross-episode links.

A bounded reconstruction for discussion. The source contains additional challenges between these episodes; their omission here is deliberate.

→ support → attack Rectangle: claim · Hexagon: reconstructed argument S Source E Explanation R Reconstruction

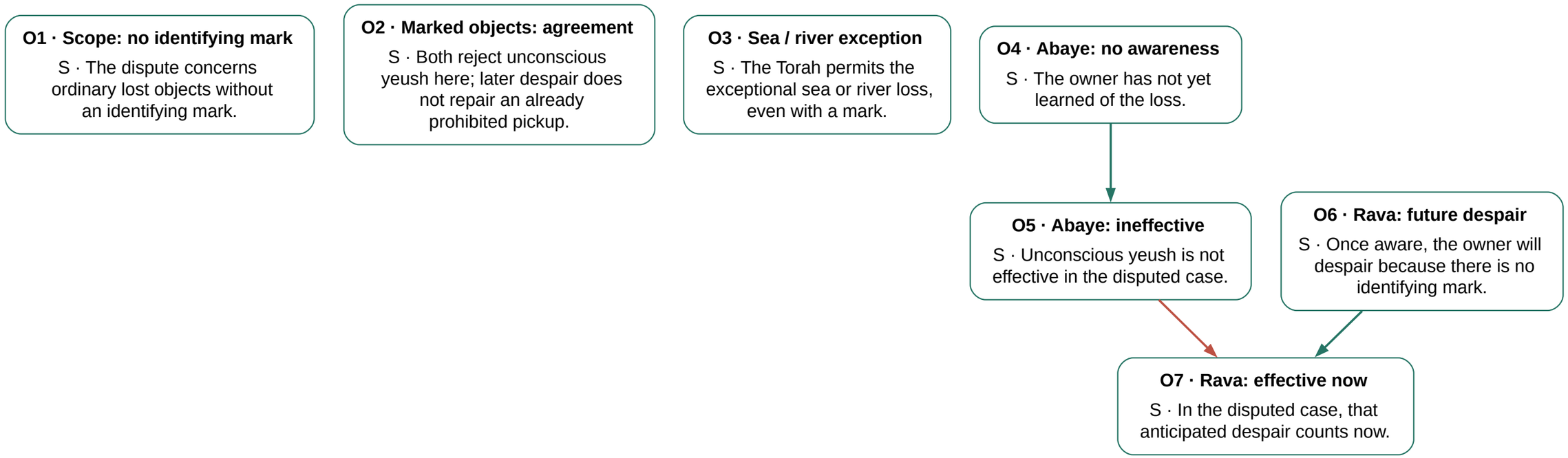


The overview preserves cross-episode attacks. Use the episode views for legibility and the source ledger for provenance. Arrows express reconstructed dialectical relations, not mechanically verified entailment.

Can future despair count now?

Imagine an ordinary lost object without an identifying mark. The owner would despair upon learning of the loss—but has not yet learned. Abaye requires awareness; Rava counts the anticipated response now.

→ support → attack Rectangle: claim · Hexagon: reconstructed argument S Source E Explanation R Reconstruction

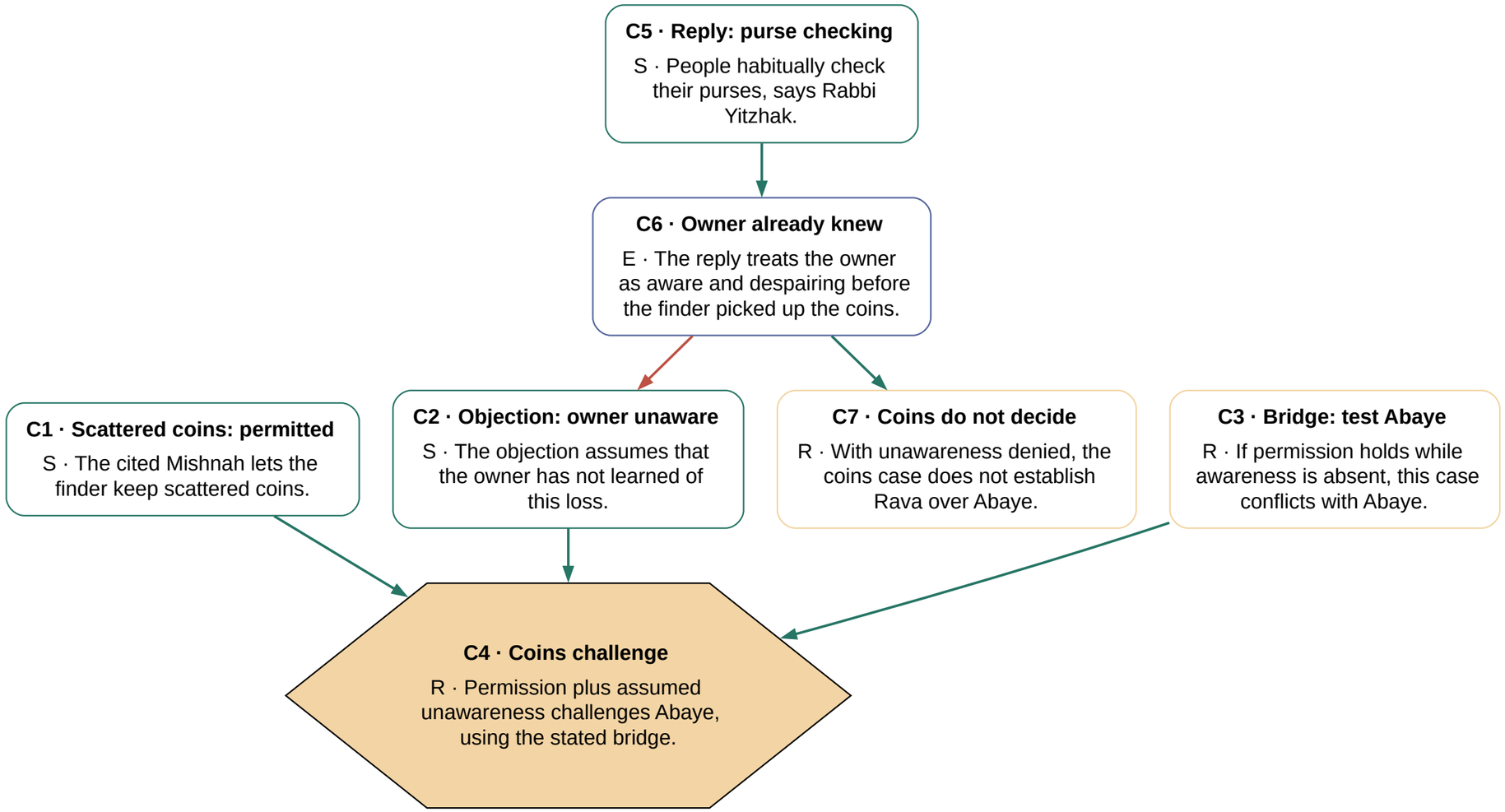


O1–O3 are scope statements, deliberately unconnected. They define where the dispute applies; they are not premises proving either side. The red arrow records the conflict between the positions.

A reply can change the facts.

The Mishnah allows the finder to keep scattered coins. The anonymous objection asks how that can hold if the owner is still unaware. The answer invokes Rabbi Yitzhak's habitual purse checking.

→ support → attack Rectangle: claim · Hexagon: reconstructed argument S Source E Explanation R Reconstruction

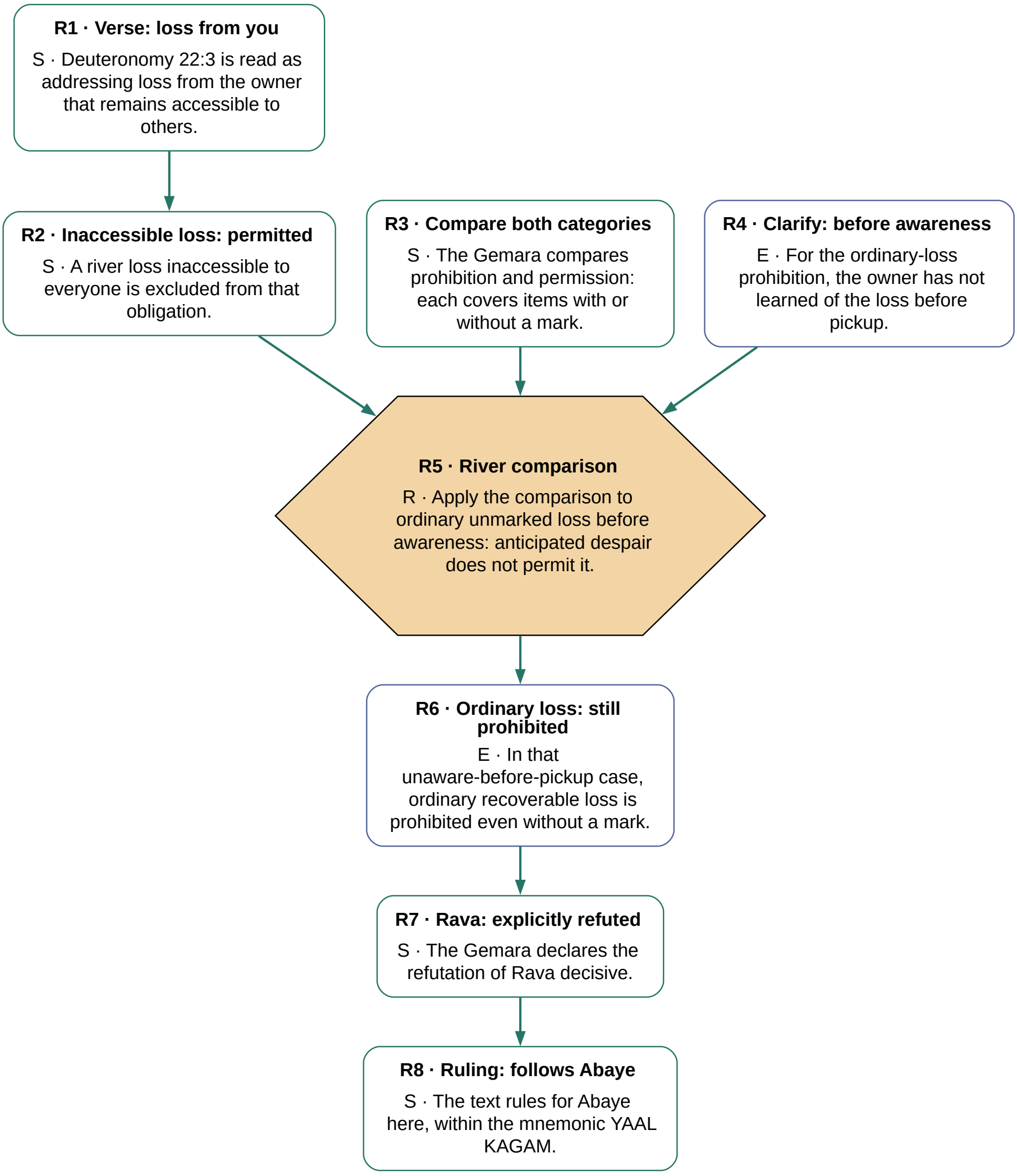


Follow C5 → C6 → C2: the reply attacks the assumed absence of awareness. It leaves the Mishnah intact. The overview adds the challenge's attack on Abaye (C4 → O5). No undercut is asserted.

The exception illuminates the rule.

The verse excludes loss inaccessible to everyone. The Gemara then compares the permitted and prohibited categories, including objects with and without identifying marks.

→ **support** → **attack** Rectangle: claim · Hexagon: reconstructed argument **S** Source **E** Explanation **R** Reconstruction



R4 makes the temporal qualification visible: this concerns the owner’s unawareness before pickup (Rashi). R5 reconstructs the comparison; river permission alone does not refute Rava. The overview shows R6 attacking Rava (O7).

What comes from where?

S **Source:** an explicit claim or question, in original English paraphrase. E **Explanation:** attributed expansion. R **Reconstruction:** a supplied bridge, argument summary or local assessment. These classes are provenance, not truth scores.

Nodes	Source passage
O1, O4, O6, O7	Bava Metzia 21b:4
O2	Bava Metzia 21b:2
O3	Bava Metzia 21b:3
O5	Bava Metzia 21b:1
C1–C7	Bava Metzia 21b:7
R1–R2	Bava Metzia 22b:5
R3, R4, R6, R7	Bava Metzia 22b:6
R5	Bava Metzia 22b:5-6
R8	Bava Metzia 22b:7

C6 · Awareness before the find. Following Rashi's עשוי למשמש on 21b, the reply treats awareness and despair as preceding discovery. C6 attacks C2's factual assumption; it is not an undercut of C4's inference.

R4 and R6 · The temporal qualification. Following Rashi on 22b:6, especially אף איסורא, the ordinary-loss prohibition concerns an owner who has not learned of the loss before pickup. This is not a universal prohibition on keeping all unmarked objects.

R5 · Supplied bridge. Compare the ordinary prohibition with the exceptional permission under R4's temporal qualification. River permission alone does not refute Rava. The final comparison is on 22b:5–7, distinct from the earlier river exchange on 22a.

All arrows are editorial reconstruction in Argdown's loose mode, not formal entailments. O1–O3 are isolated scope notes. The Gemara's refutation and ruling are recorded, not computed. Intervening challenges, including figs/olives/carobs, are deliberately omitted.

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Return to the words.

Unvocalized Wikisource Talmud Bavli via Sefaria. These are selected excerpts; intervening discussions are omitted.

Bava Metzia 21b:1

יאוש שלא מדעת אביי אמר לא הוי יאוש ורבא אמר הוי יאוש

Bava Metzia 21b:2

בדבר שיש בו סימן כולי עלמא לא פליגי דלא הוי יאוש ואף על גב דשמעיניה דמיאש לסוף לא הוי יאוש דכי אתא לידיה באיסורא הוא דאתא לידיה דלכי ידע דנפל מיניה לא מיאש מימר אמר סימנא אית לי בגויה יהבנא סימנא ושקילנא ליה

Bava Metzia 21b:3

בזוטו של ים ובשלוליתו של נהר אע"ג דאית ביה סימן רחמנא שרייה כדבעינן למימר לקמן

Bava Metzia 21b:4

כי פליגי בדבר שאין בו סימן אביי אמר לא הוי יאוש דהא לא ידע דנפל מיניה רבא אמר הוי יאוש דלכי ידע דנפל מיניה מיאש מימר אמר סימנא לית לי בגויה מהשתא הוא דמיאש

Bava Metzia 21b:7

ת"ש מעות מפוזרות הרי אלו שלו אמאי הא לא ידע דנפל מיניה התם נמי כדרבי יצחק דאמר אדם עשוי למשמש בכיסו בכל שעה ושעה הכא נמי אדם עשוי למשמש בכיסו בכל שעה ושעה

Bava Metzia 22b:5

ת"ש דא"ר יוחנן משום רבי ישמעאל בן יהוצדק מנין לאבידה ששטפה נהר שהיא מותרת דכתיב (דברים כב, ג) וכן תעשה לחמורו וכן תעשה לשמלתו וכן תעשה לכל אבידת אחיך אשר תאבד ממנו ומצאתה מי שאבודה הימנו ומצויה אצל כל אדם יצאתה זו שאבודה ממנו ואינה מצויה אצל כל אדם

Bava Metzia 22b:6

ואיסורא דומיא דהיתירא מה היתירא בין דאית בה סימן ובין דלית בה סימן שרא אף איסורא בין דאית בה סימן ובין דלית בה סימן אסורה תיובתא דרבא תיובתא

Bava Metzia 22b:7

והלכתא כוותיה דאביי ביע"ל קג"ם

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